Mattilsynet
Norwegian Food Safety Authority

HAVE YOUR SAY – ON THE WELFARE OF DOGS AND CATS AND THEIR TRACEABILITY

The title of the regulation should define what the regulation covers. The regulation is mainly about animal welfare in terms of breeding and/or sales/distribution.

Harmonized EU rules on breeding and placing on the market, and the establishment of minimum welfare standards is important and necessary for all dogs and cats, not only those held in establishments. We therefor suggest that the Commission considers a proposal that apply to **all** dogs and cats, whether they are kept in establishments or private households, and which applies regardless of the number of animals kept in that establishment or private household.

Harmonized EU rules should ensure that all dogs and cats should be protected with mandatory rules, in a requirement of mandatory identification (by electronically read transponders) for all dogs and cats.

The regulation should have an aim or objective. To be able to understand the provisions and how they should be implemented, it is essential to know what the rules are intended to achieve. The Commission has in conjunction with the revision of animal welfare legislation stated that the concept of the five domains is key to the proposal. Thus, the rules are not only about absence of negative welfare states, but also about animals experiencing positive welfare states.

We suggest that an aim is added to article 1: *Subject matter and aim*. The rules of this regulation aim to ensure that **all** dogs and cats, *and especially those* bred or kept in establishments or placed on the Union market, are treated with respect and spared any avoidable pain, distress or suffering while considering their species-specific behaviour.

Re. article 1, 3.11, 3.12 and 4:
The word “establishment” and “breeding establishment”:

This Regulation is exclusively intended for establishments where dogs and cats are kept for reproduction purposes and with a view to place the offsprings on the market. Households can also be breeding establishments.

Art. 4 states that small breeding establishments, and pet shops and shelters with a small number of animals, are exempted from the general obligations in the rest of chapter II. In Norway, most breeders have just a few breeding animals, and operate from their own home.

We notice that the obligations only apply to establishments with more than a certain number of female animals. We therefor ask about obligations also for establishments that only keep male animals for breeding. Males also need absence of negative welfare, and a minimum of welfare protection.

Several of the obligations in chapter II relate to general health and welfare principles, responsible ownership, competence, housing, health, and mutilations, and we therefor believe it is **not right to exclude** small breeding establishments for dogs and cats from the general

obligations. It should be a goal to give **all** dogs and cats the same minimum of welfare protection.

For this reason, such small breeding establishments should not be excluded from all the specific articles in chapter II. Instead, chapter II should be applicable for **all** dogs and cats.

According to the proposal, a shelter must house quite a high number of animals to be covered by the rules. In Norway, we have several establishments where unwanted, abandoned, lost, or confiscated dogs and cats are kept and taken care of. We do not have shelters with formal stray dogs, because Norway do not have stray dogs. But we do have shelters with stray cats.

We suggest that **all** shelters, regardless of the number of animals in the establishment, should be covered by the proposal. All animals placed in a shelter should have the same minimum welfare protection.

About pet shops: the proposal allows dogs and cats to be sold from pet shops. This is banned in Norway today and should be banned all over the EU.

Re. art. 6.2 "suitable number of caretakers":
We believe the wording of "suitable" is imprecise. At the same time, this gives the establishment the opportunity to use its own judgement and make an independent assessment of the needs of the various animals in the establishment.

Re. art. 6.3, about breeding strategies and extreme breeding:
The proposed text on breeding, and especially breeding with negative consequences on the welfare of the offspring, is too vague and "mild". Only brachiocephalic breeds are mentioned specifically, although today there are many more well-known examples of unfortunate breeding that give the animal great health challenges, with both pain and suffering. E.g. breeding on Cavalier King Charles Spaniel and Scottish fold.

Art. 6 should be more clearly formulated, and there should be a ban on breeding dogs and cats where it is obvious that negative consequences will occur.
In the Norwegian draft for regulations on dog breeding, it is stated that "Dogs shall not be bred if they have one or more hereditary characteristics that will put the offspring at risk of unnecessary strain."

We acknowledge that the breeding programs are required to minimise the negative consequences for the brachiocephalic breeds, but the proposal does not mention a time perspective in which that change must happen. At the very least, it should say something about the expected positive progress of the various breeding programs, within an expected and acceptable timeline. A breeding program which aims to minimise negative consequences, without a clear expectation of improvement or development, will not produce the effects we wish for.
A positive progress must apply regardless of breed and challenges. It should therefore not only apply to brachiocephalic dogs, which is only one example of dogs with challenges because of breeding.

We believe art. 6 number 3 in the proposal is a rare opportunity for breeds with health challenges to develop in a positive direction. In the Norwegian draft for regulations on dog breeding, it is stated that "It should be absolutely prohibited to breed offspring at risk of significant and chronic

pain or significantly reduced ability to breathe, move or perform other essential bodily functions". Norway proposes requirements for the organizations, not just the breeders. The draft also states that "Good, specific and time-bound breeding targets must be established for each type of dog/breed. The breeding program must ensure that the breeding goals are achieved and maintained in an efficient manner".

If corrective surgery should be used on breeding defects (BOAS, hip correction, skin surgery, eyes etc.) it should mandatorily be recorded by a veterinarian in the animal's passport. We also suggest introduction of electronic passports and that corrective surgery and other health issues, e.g. DNA-test results, are noted in the database suggested in art. 19.

In our opinion there should be a ban on breeding animals with known genetic defects or "extreme features".

The Norwegian Supreme Court has established that there is a threshold for which hereditary burdens must be considered "unnecessary" for the offspring, and that dog breeds with a relatively large proportion of offspring with hereditary unnecessary burdens must have a breeding program that relatively quickly provides significant improvements.

The proposal should ban the import and selling of dogs and cats with "extreme features". With a ban on both the import and sale of animals with extreme traits (which should be clearly specified), it will no longer be interesting to breed these animals.
Such a ban should apply to everyone who breeds these dogs and cats, not just those who keep animals in establishments.

The article 6.3 should also ban mating between siblings.

Re. art. 6 and art. 13 – about artificial insemination:
The proposal lacks a requirement saying that artificial insemination must only be performed by a veterinarian and only in exceptional cases. Artificial insemination must not be used as a default or to overcome problems due to the inability of dogs and cats to mate and conceive naturally. There should be a good reason to use artificial insemination, e.g. to increase the genetic diversity.

This is also in accordance with our draft regulation on dog breeding. Furthermore, we believe that insemination should only be carried out by a veterinarian, and that also only veterinarians can collect semen from dogs.

Re. art. 9, about animal welfare competences of animal caretakers:
The requirement for competence should apply to **everyone** who is going to take care of an animal, regardless of the number of animals and the size of the business. The Norwegian Animal Welfare Act requires **everyone** who is going to look after an animal, to have the necessary competence.

Re. art. 10, about animal welfare visits:
A visit by a veterinarian “at least once a year” is insufficient. All commercial breeders and establishments must have a veterinary health plan, developed in collaboration with the veterinarian. The plan should be risk-based, with a description of the needs for the animals

(vaccination, parasite-treatment etc.). It should be required to keep the documentation, ex DNA-result and other health results, which is specific for each animal.

The need for a requirement for reproductive control. This should be mandatory for all establishments that do not intend to breed for sale. Including a plan for castration/sterilization of animals.

Re. art. 12, about housing:
These requirements should also apply to **all types** of establishments, regardless of the number of animals. Today, in Norway, these requirements are currently regulated by the Animal Welfare Act, where § 23 is about housing and living environment, and in a specific regulation on the marketing and temporary housing of animals (Forskrift om omsetning og midlertidig hold av dyr).

In addition, we note that art. 12, "housing", does not require quarantine facilities or a necessary number of places to isolate sick animals (cf. art. 13.2.b), animals with unknown infection status, and animals that for other reasons require to be placed alone and followed up. Norway has such a requirement in the regulation on the marketing and temporary housing of animals. Norway considers that article 12 should include a requirement for facilities to isolate animals in, in accordance with art. 13.2.b.

We also believe that requirements for fire alarms, firefighting equipment, and escape routes should be included in the proposal.

Re. art. 13.2.a:
Inspection only once a day is not enough. All animals kept by humans need inspection twice a day as a minimum. When necessary, ex. sick animals, young/old animals and around the time of whelping, more frequent inspection is needed.

Re. art. 13.2.c and 13.3.e – about euthanasia:
We do not support the proposal saying that euthanasia should only be on the recommendation from a veterinarian and only for justifiable reasons.

We believe that euthanasia is an acceptable alternative in terms of animal welfare when the reason for it can be justified and documented. Poor health or welfare should not be the only reasons to justify that an animal should no longer live.

We therefore find the wording in art. 13.3.e. too strict and rigid. It almost gives a ban on culling/euthanising, which is unfortunate.

Re. art. 14 .5:
The description "...and where possible...": this should be removed. It is absolutely necessary to socialize all animals with both humans and other animals.

Re. art. 15.3, about painful practices:
It should be a **complete ban** on mutilations of all animals.

It is also important that no mutilations are excluded, and we therefore suggest the wording "Mutilations, including but not limited to...".

Operative interventions or removal of body parts must not be done without a justifiable reason based on consideration of the animal's health.

In Norway ear docking was banned in 1935 and tail docking was banned in 1988.

We strongly recommend including a ban on sexual activity with animals in this article.

d) It is unclear to us in which situations it would be necessary to use muzzles for a prolonged time for welfare reasons.

Re. art. 16, about approval:
A transition period of 5 years is too long. We believe that already existing establishments should be able to fulfil the requirements in a shorter time than 5 years.

With new requirement for approval of breeding establishments, requirements and/or principles for withdrawing of the approval, and consequences for breeders still operating despite withdrawn approval, should be considered.

Re. art. 17, about identification and registration:
This should be mandatory for all dogs and cats.

We would like to highlight the proposal's requirement for an identity number that identifies the animal's country of origin. This is a positive measure, especially to counter the illegal trade in animals. At the same time, the requirement will require measures to ensure the origin of the microchips. Today it is too easy to order a microchip online.

Re. art. 18, about training:
The proposal lacks minimum requirements for the content in such a course, including how to ensure that operators and course developers maintain updated knowledge.

Re. art. 19, about databases:
We recommend the development of electronic passports for dogs and cats.

Re. art. 25, about stricter national measures:
It is unfortunate that the regulation does not allow Member States to adopt stricter national measures for more comprehensive protection of dog and cat welfare across all animal welfare issues.